Gmail Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Dept. 10A – STK-CV-UF-2026-0001032 – Intent to Appear and Argue Tentative Ruling on Demurrer

2 messages

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Mon, Jul 13 at 2:35 PM
To: <civilcourtclerks@sjcourts.org>

Dear Clerk,

I am the Plaintiff appearing in pro per in the above-referenced matter. I write to notify the Court that I intend to appear in person and argue the tentative ruling on Defendants' Demurrer to the First Amended Complaint.

Case Name: Newanforbi v. HOPE Program et al.

Case Number: STK-CV-UF-2026-0001032

Department: 10A

Hearing Date and Time: July 15, 2026 at 9:00 a.m.

Motion: Demurrer to Plaintiff's First Amended Complaint

Party: Brendan Ngehsi Newanforbi, Plaintiff in Pro Per

Email: bnn.cdl@gmail.com

I intend to argue the following issues:

1. That exhaustion of administrative remedies is not a jurisdictional bar to Plaintiff's claims for fraud, negligence, IIED, Bane Act violations (Civ. Code § 52.1), and UCL violations (Bus. & Prof. Code § 17200) against private defendants, as this is a private damages action and not a writ challenging an administrative or parole decision.

2. That 15 CCR § 3574(e) expressly separates the Containment Team's review of treatment program completion from parole discharge decisions, undermining the jurisdictional exhaustion theory.

3. That, in the alternative, Plaintiff should be granted leave to amend if the Court is inclined to sustain the demurrer.

I have informed opposing counsel, Blaze Van Dine of Sims, Lawrence & Broghammer, that I intend to appear and argue the tentative ruling.

Respectfully submitted,

Brendan Ngehsi Newanforbi

Alicia L. Liechty <aliechty@sjcourts.org> Mon, Jul 13 at 2:40 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>, Civil Courtroom Clerks <civilcourtclerks@sjcourts.org>

Cc: cynthia@sims-law.net <cynthia@sims-law.net>, bryan@sims-law.net <bryan@sims-law.net>, blaze@sims-law.net <blaze@sims-law.net>, SLB@sims-law.net <SLB@sims-law.net>

Good Afternoon,
Received. I have included opposing counsel to avoid the appearance of any ex parte communication with the Court.

Thank you.

Alicia Liechty
Courtroom Clerk, Department 10A
Superior Court of California, County of San Joaquin
180 E. Weber Avenue
Stockton, CA 95202
ofc: (209) 992-5560
aliechty@sjcourts.org | www.sjcourts.org

This email may contain confidential and privileged material for the sole use of the intended recipient(s). Any review, use, distribution, or disclosure of confidential and privileged material by others is strictly prohibited. If you are not the intended recipient (or authorized to receive for the recipient), please contact the sender by reply email and delete all copies of this message.

From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Monday, July 13, 2026 2:35 PM
To: Civil Courtroom Clerks <civilcourtclerks@sjcourts.org>
Subject: Dept. 10A – STK-CV-UF-2026-0001032 – Intent to Appear and Argue Tentative Ruling on Demurrer

Some people who received this message don't often get email from bnn.cdl@gmail.com. Learn why this is important

⚠ **CAUTION:** External email. Check with sender before opening attachments or links.

[Quoted text hidden]